

**JUSTIFICATION & APPROVAL (J&A) FOR EXCEPTION TO FAIR
OPPORTUNITY FEDERAL ACQUISITION REGULATION (FAR)
SUBPART 16.5 ACQUISITIONS**

EXCEPTION TO FAIR OPPORTUNITY

Multiple Award Schedule (MAS)/Multiple Award Contract (MAC)
Orders under MAC/Fair Opportunity – FAR 16.505, Department of Defense FAR Supplement
(DFARS) 216.505-70, Procedures, Guidance and Information (PGI) 216.505-70

Contract Number: HHSN316201200012W

Task/Delivery Order Number: HC102819F0687

Procurement Title: Platform Services Bridge

Estimated Value: [REDACTED]

Authority: FAR 16.505(b)(2)(i)(C)

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

J&A Number: JA25-010 **MOD 02**

The bold text represents updates made to the language after completion of MOD 02.

Upon the basis of the following justification, I, as Head of the Contracting Activity, hereby approve this limited source justification in accordance with FAR 16.505(b)(2)(i)(C).

MOD 01: Upon the basis of the following justification, I, as Procuring Activity Competition Advocate, hereby approve this limited source justification in accordance with FAR 16.505(b)(2)(i)(C).

1. REQUIRING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:

Defense Information Systems Agency (DISA)/J6 Command, Control,
Communications, and Computers Enterprise (C4E) Directorate
7010 Defense Pentagon, 3B288
Washington, D.C. 20301-7010

Contracting Activity:

DISA/Defense Information Technology Contracting Organization
(DITCO)/PS8331
2300 East Drive, Building 3600
Scott AFB, IL 62225-5406

Controlled By: DISA

Controlled By: PS8331

CUI Category: PROCURE

Distribution/Dissemination Control: FEDCON

2. NATURE/DESCRIPTION OF ACTION(S): MOD 01: This is J&A Modification 01 (MOD 01) to the originally approved J&A (JA25-010), with bold text representing the updated language from the initial J&A.

The nature of this action is to procure one, 6-month firm-fixed-price base period and three, 2-month option periods to extend the period of performance (PoP) against the existing DISA J6 C4E Platform Services task order (TO) HC102819F0687. The PoP for the current TO ends December 12, 2024. This action will extend the PoP by up to 12 months, from December 13, 2024 - December 12, 2025 (if all options are exercised). This extension will ensure continued support during the protest period of the follow-on Platform Services effort as well as provide additional time, if necessary, based on the protest proceedings and associated resolution. The structure of the extension provides for an off-ramp opportunity whereby options will not be exercised unless required to provide continuity of services in the absence of the follow-on effort being in place. The Platform Services effort actively supports the Pentagon's network systems. The base period will be funded by fiscal year (FY) 2025 operations and maintenance funding.

MOD 01: J&A MOD 01 includes two increases: 1) an increase of [REDACTED] to accommodate the previously awarded bridge amount ([REDACTED]) that exceeded the original J&A estimated value ([REDACTED]) and 2) an increase in the J&A estimated value by \$ [REDACTED] to support a four-month extension of the current task order period of performance (PoP).

Original J&A Amount	[REDACTED]
J&A Increase to Accommodate Original Bridge Award Amount	[REDACTED]
Total	[REDACTED]
J&A Increase for 4-month extension	[REDACTED]
Total Increase of J&A Increase	[REDACTED]

The current bridge task order PoP expires on December 12, 2025. The original bridge was established to provide additional time to complete the competitive follow-on award. Award of the follow-on effort is now estimated for January 2026 due to the extended time required to complete corrective actions in response to the post award protest received following initial award. This modification to the J&A provides a four-month extension (December 13, 2025 – April 12, 2026). The four-month PoP extension aligns with the current award projection and transition time requirements. The extension will be funded by FY 2026 operations and maintenance funding.

MOD 02: This is J&A Modification 02 (MOD 02) to the originally approved J&A (JA25-010) and Modification 01, with bold text representing the updated MOD 02 language.

J&A MOD 02 extends the duration of the task order up to three months, and increases the estimated ceiling value by [REDACTED], from [REDACTED] to [REDACTED]. The current bridge task order PoP expires on April 12, 2026. The original bridge was established to provide additional time to complete the competitive follow-on award. Award of the follow-on effort is now estimated for April 2026. MOD 02 provides an additional two-month period (April 13, 2026 – June 12, 2026), with a 1-month option period (June 13, 2026 – July 12, 2026). The extension will be funded by FY 2026 operations and maintenance funding.

3. DESCRIPTION OF SUPPLIES/SERVICES: Continuity of services is required to support the DISA J6 C4E and maintain network operations. The order provides Platform as a Service (PaaS), Infrastructure as a Service (IaaS), Virtual Desktop as a Service (VDaaS), storage, backup and recovery, cyber compliance, mainframe, specific mission and enterprise application support, configuration management, 24x7 monitoring and organizational messaging system support located in the Pentagon, and at the alternate site locations within the National Capital Region (NCR).

The current TO expires on December 12, 2024. This effort was recompeted as a small business set aside via the General Service Administration Multiple Award Schedule. On October 21, 2024, the follow-on Blanket Purchase Agreement (BPA), HC102825A0001, was awarded. The bid protest was submitted in a timely manner to trigger an automatic suspension of performance of the follow-on pending resolution of the protest in accordance with FAR 33.103(f)(3). The award of the extension to the current TO will allow for continued support of this vital program during the protest period, while retaining the ability to provide a consistent level of effort for the DISA J6 C4E and its stakeholders without a break in service.

The estimated cost of support for this extension is [REDACTED], which includes approximately 205 full time equivalents for one, 6-month base period and three, 2-month option periods.

Period of Performance		Estimated Total Cost
Base Period:	December 13, 2024 – June 12, 2025	[REDACTED]
Option Period 1:	June 13, 2025 – August 12, 2025	[REDACTED]
Option Period 2:	August 13, 2025 – October 12, 2025	[REDACTED]
Option Period 3:	October 13, 2025 – December 12, 2025	[REDACTED]
Total:		[REDACTED]

MOD 01: MOD 01 to the J&A extends the period of performance of the task order for four-months (December 13, 2025 – April 12, 2026). The extension increases the total estimated value by [REDACTED]. See Section 2 for additional details related to the increased estimated value from the original J&A.

MOD 02: MOD 02 extends the period of performance by two months (April 13, 2026 – June 12, 2026) and includes a 1-month option to extend services (June 13, 2026 – July 12, 2026). The extension increases the total estimated value by [REDACTED]

4. IDENTIFICATION OF THE EXCEPTION TO FAIR OPPORTUNITY:

- (a) Exception to Fair Opportunity. This modification must be issued on a sole-source basis in the interest of economy and efficiency.
- (b) Justification.
 - (1) Minimum Government requirements. DISA J6 C4E and its stakeholders depend on PaaS, IaaS, VDaaS, storage, backup and recovery, cyber compliance, mainframe, specific mission and enterprise application support, configuration management, 24x7 monitoring and organizational messaging system support in the Pentagon and at alternate location sites within the NCR. A lack of contractor support to carry out these functions will negatively impact DISA J6 C4E network users and may result in unavailability of the network or introduce vulnerabilities to the network, increasing the risk of cybersecurity attacks.
 - (2) Proposed sole source contractor. Due to the bid protest filed by Open San Consulting (dba OSC Edge) and GCyber LLC, SAIC is the only responsible source at this time that can fulfill this requirement without risk of a substantial break in Platform services support to the DISA J6 C4E.
 - (3) A sole source extension modification is necessary due to post-award protests filed in response to the award of the follow-on BPA, HC102825A0001.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION: During source selection of solicitation number 832267288, a cost/price evaluation was conducted in accordance with FAR 15.404. The contract prices were determined to be reasonable for the base and all option periods. The proposed cost/prices for the extension will be compared to the current TO prices as well as the Independent Government Cost Estimate and the proposed prices for the follow-on effort to determine fair and reasonableness.

6. MARKET RESEARCH: This is an extension to the existing TO to ensure continued support until the post-award protest and transition period of the follow-on contract, HC102825A0001, are complete. Market research was conducted for the follow-on contract, which was completed within the last 12 months. The market research identified potential sources which enabled the follow-on contract to be conducted as a competitive small business set-aside.

7. ANY OTHER SUPPORTING FACTS: Not Applicable

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE BARRIERS THAT LED TO THE RESTRICTED CONSIDERATION:

- (a) Current Contract: HHSN316201200012W/HC102819F0687
- (b) Status: Expires December 12, 2024. Competitive small business set-aside source selection was completed for the follow-on. Award announced October 21, 2024. Stop-work order was issued on October 31, 2024 due to a bid protest.

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MOD 01: With award of the initial bridge, the current task order is now set to expire April 12, 2026.

MOD 02: The task order will now expire June 12, 2026. Additionally, a one-month option period may be exercised to extend performance through July 12, 2026 (as needed).

9. REFERENCE TO THE APPROVED ACQUISITION PLAN (AP): On April 1, 2019, Platform Services was originally awarded to Unisys Corporation. On June 14, 2019, the Department of Health and Human Services (HHS) Program Support Center notified affected Department of Defense (DoD) components that their Program Support Center was terminating its assisted acquisition program for non-HHS agencies effective immediately, because the HHS was unable to certify to its compliance with DoD procurement requirements in accordance with Section 801 of the FY 2008 National Defense Authorization Act. As such, the DoD was required to assume procurement and administration responsibilities for any affected contracts to maintain continuity of mission essential service. On July 3, 2019, the requirement was transferred to DISA/DITCO for administration and a continued contract (TO HC102819F0687) was awarded the same day and subsequently administered by DITCO-Scott. HHS would not provide DISA any documents (e.g., AP) from their contract file as the file was embargoed by HHS General Counsel. Given the very limited time to award a new order to the incumbent contractor as a continued contract, DITCO-Scott did not prepare an AP. Further, in accordance with DISA Acquisition Regulation Supplement (DARS) 5807.103(S-91)(ii), an AP is not required for this bridge contract action.

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TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED] [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: [REDACTED] SIGNATURE: [REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED]

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED] [REDACTED] [REDACTED]
[REDACTED] [REDACTED] [REDACTED] [REDACTED]
[REDACTED]

PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed [REDACTED], this review serves as approval and my written determination that the aforementioned FAR circumstances apply.

[REDACTED] [REDACTED] [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO Contracting Officer, [REDACTED]